

M/S Sandeep Bobbins v. State of U.P. — no Supply Code concession on supervision charges for a fresh connection

High Court of Judicature at Allahabad · Division Bench · 3 February 2014 · Writ-C No. 6444 of 2014 · **Writ petition rejected; no Code concession on supervision charges for a fresh connection.**

HEADNOTE

A consumer sought a writ that it was not liable to pay more than 15% supervision charges under the U.P. Electricity Supply Code, 2005 and to quash intimations to that effect. The Division Bench, having perused the Code and the instructions relied on, held that no provision grants a concession on supervision charges to a consumer who has applied for a fresh connection. The prayer was misconceived and the petition was rejected.

FACTUAL SUMMARY

M/S Sandeep Bobbins petitioned the Allahabad High Court claiming it was not liable to pay more than 15% supervision charges under the U.P. Electricity Supply Code, 2005, and seeking quashing of intimations issued to that effect. During hearing, counsel produced a letter dated 20 June 2013 stating that the installation had to be carried out in accordance with the norms indicated therein. The petitioner disputed that those norms could be enforced against it. The State and the electricity respondents were represented.

REUSABLE CONSTRUCTIONS

1. The U.P. Electricity Supply Code, 2005 contains no provision granting a consumer who has applied for a fresh connection any concession or relief in relation to supervision charges. ¶ 1

HOLDING-UNITS

HOLDING-UNIT · UP-2005::supervision-charges

supervision charges on a fresh connection

HOLDING

The U.P. Electricity Supply Code, 2005 and the instructions relied on contain no provision granting a concession to a consumer who has applied for a fresh connection in relation to supervision charges; a writ seeking to limit such charges to 15% and to quash intimations to that effect is misconceived and is rejected. ¶ 1